

LAW & MOTION CALENDAR
TENTATIVE RULINGS

July 10, 2026

9:00 AM

CX-101

JUDGE WILLIAM D. CLASTER

Department CX101 Phone Number: (657) 622-5301

The Court will hear oral argument on all matters at the time noticed for the hearing. If you would prefer to submit the matter on your papers without oral argument, please advise the clerk by calling (657) 622-5301. The Court will not entertain a request for continuance nor filing of further documents once the ruling has been posted.

APPEARANCES: Appearances, whether remote or in person, must be in compliance with new Code of Civil Procedure §367.75, California Rules of Court, Rule 3.672, and Superior Court of California, County of Orange, Appearance Procedure and Information, Civil Unlimited and Complex, located at https://www.occourts.org/media-relations/covid/Civil_Unlimited_and_Complex_Appearance_Procedure_and_Information.pdf.

COURT REPORTERS: Official court reporters (i.e. court reporters employed by the Court) are **NOT** provided for any matters in this department. If a party desires a record of a law and motion proceeding, it will be the party’s responsibility to provide a court reporter. Parties must comply with the Court’s policy on the use of privately retained court reporters which can be found at:

- [Civil Court Reporter Pooling](#); and
- For additional information, please see the court’s website at [Court Reporter Interpreter Services](#) for additional information regarding the availability of court reporters.
- [Civil Limited, Unlimited and Complex \(Updated June 11, 2020\)](#)

#	CASE NAME	MATTER
1	Silvestri vs. Upward Projects Holdings, LLC 2024-01380452	Plaintiff’s Unopposed Motion for Approval of Class Settlement Plaintiff’s motion for preliminary approval of class action settlement is CONTINUED to September 4, 2026 at 9:00 a.m. in Department CX101 to permit the parties to respond to the following items of concern. Any supplemental briefing shall be filed on or before August 24, 2026. If a revised settlement agreement and/or class notice is submitted, a redline showing all changes, deletions and additions must be submitted as well. <i>As to the Settlement:</i> 1. Please provide copies of all pre-filing letters, both original and amended, that Plaintiff sent to the LWDA. 2. The class and PAGA periods end on “December 31, 2024, or, at the option of Defendant, any later date on or before the date the court grants preliminary approval of the Settlement, subject to the escalator provision in Paragraph 50 below.” This appears to give Defendant the option to set a <i>longer</i> class period if it wants. Is this

		really what the parties intended? How is this permissible? How can the parties value claims for a unknown period looking forward? 3. Please provide 60 days, rather than 45, for opt-outs, objections and workweek disputes. 4. Counsel states that many class members signed arbitration agreements with class waivers. Did Plaintiff sign one? 5. Plaintiff worked as a server. Is he typical of back-of-house workers? In this regard, the off-the-clock work claims are based on time spent splitting tips while clocked out. 6. What documents and data did Defendant turn over prior to mediation? There are fleeting references to record samples and policies in counsel’s declaration. 7. Did counsel interview anyone other than Plaintiff to value non-record claims? 8. Was an expert retained to assist in valuation? If so, please provide a CV. 9. Counsel states that the possibility of a <i>Pick Up Stix</i> campaign figured into his valuation of the case. Was a <i>Pick Up Stix</i> campaign in fact threatened by Defendant? 10. Did Defendant indeed <i>require</i> employees to be clocked out while splitting tips, either as a formal written policy or as an oral directive from management? 11. Did Defendant turn over sample meal break waivers? In counsel’s opinion, were the waivers compliant with applicable law and regulation? 12. Counsel’s claim valuation appears to omit the following claims: biweekly pay, vested vacation pay, reimbursement, wage statements, and UCL. The Court will not approve the release of any claims that aren’t separately valued.
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3	Stewart vs. Irv’s Burgers LLC 2025-01493662	Plaintiff’s Unopposed Motion for Approval of Paga Settlement The motion for approval of PAGA settlement is CONTINUED to September 11, 2026 at 9:00 a.m. in Department CX101 to permit the parties to respond to the following items of concern. Any supplemental briefing shall be filed on or before September 1, 2026. If a revised settlement agreement and/or proposed notice is submitted, a redline version showing all changes, deletions and additions must be submitted as well. In addition, Plaintiff must provide proof of service of any revised settlement agreement and supplemental papers on the LWDA. 1. The settlement agreement contemplates the dismissal without prejudice of Plaintiff’s class claims. Has a request for dismissal of the class claims been filed? 2. Defendant turned over time and pay records for the aggrieved employees. Was this a sampling of records? If so, how large (e.g., 10%), and what steps were taken to ensure the sampling was representative? 3. Did counsel interview any employees other than Plaintiff? 4. Was an expert retained to assist in claim valuation? If so, please provide a CV. 5. Counsel’s valuation of the PAGA claim is inadequate for the Court to discharge its approval duties. “[A] trial court should evaluate a PAGA settlement to determine whether it is fair, reasonable, and adequate in view of PAGA's purposes to remediate present labor law violations, deter future ones, and to maximize enforcement of state labor laws.” (<i>Moniz v. Adecco USA, Inc.</i> (2021) 72 Cal.App.5th 56, 77.) For each predicate Labor Code violation, please explain the theories of prosecution and defense, the evidence supporting those theories, and the likelihood of success. The Court cannot determine whether the settlement is fair without this information. (See <i>ibid.</i> (citing <i>Kullar v. Foot Locker Retail, Inc.</i> (2008) 168 Cal.App.4th 116 and <i>Dunk v. Ford Motor Co.</i> (1996) 48 Cal.App.4th 1794).) 6. Please provide contemporaneously made billing records for lodestar cross-check purposes, not simply a month-by-month listing of total hours worked.

		7. Has Plaintiff separately settled his individual claims? If so, please provide a copy of the settlement agreement. The Court requires this information to evaluate the fairness of the PAGA settlement. 8. Does notice need to be given in any languages other than English?
4	Yang vs. Brandrep, LLC 2024-01415295	Plaintiff’s Motion to Enforce Settlement There is no tentative ruling on Plaintiff Jenny Yang’s motion to enforce the parties’ settlement agreement. Among other things, the Court does not understand the need for an order to enforce a settlement that already is the subject of a judgement. (ROA 101, entered on April 2, 2026) Presumably, Plaintiff will be able to execute on the judgment if all payments are not made by the final funding date. At the hearing, the parties should be prepared to discuss the state of Defendant BrandRep, LLC’s finances, including (1) the likelihood of Defendant fully funding the settlement in time for the planned August 2026 distribution to class members and (2) the likelihood that Defendant will file for bankruptcy.
6	H.G. vs. Tustin Unified School District 2023-01365548	Plaintiff’s Motion to Quash Discovery Subpoena Plaintiffs Jane Doe H.G. and Jane Doe K.G. move to quash or modify several subpoenas issued by defendant Tustin Unified School District (TUSD). The motion is GRANTED IN PART. The subpoenas will be modified as set forth below. Plaintiffs’ request for sanctions is DENIED. <u> </u> I. <u>Brief Background</u> This is one of several related cases involving Siu Kong Sit, a former TUSD teacher who placed recording cameras in locker rooms and restrooms at Beckman High School to capture images of minors undressing. After the cameras were discovered by a TUSD employee in February 2023, Sit pleaded guilty to federal child pornography charges. He is now imprisoned.

	In addition to their claims against Sit, Plaintiffs bring claims against TUSD that sound primarily in negligent supervision. As to damages, Plaintiffs claim to have suffered “damages in the form of severe emotional distress and injury in mind and body including, but not limited to, emotional and psychological injuries including discomfort at school, heightened sensitivity, nightmares, humiliation, mental anguish, anxiety, and difficulty trusting others, a lifetime of fear of having their nude bodies disseminated throughout the internet, and special damages in the form of past, present, and future medical and psychological care expenses, loss of earnings and future earning capacity, consequential and incidental expenses incurred, and all additional economic losses and other damages in an amount to be proven at trial.” (Second Amended Complaint (SAC) (ROA 67) ¶ 39.) Later in the SAC, Plaintiffs characterize their damages as “including, but not limited to, mental anguish, sleeplessness, crying spells, humiliation, fear of dissemination of their exposed bodies, emotional outbursts, depression, nightmares, decrease in academic performance, and exhaustion.” (<i>Id.</i> ¶ 61.) As a result, “Plaintiffs have incurred and will incur future medical/psychological and other related expenses” and “have sustained special and general damages in an amount according to proof.” (<i>Id.</i> ¶ 62.) II. <u>Meet and Confer</u> TUSD argues that Plaintiffs failed sufficiently to meet and confer before filing this motion, and the motion should be denied on that basis. The Court agrees that Plaintiffs’ meet and confer efforts were insufficient. Despite receiving the subpoenas on May 27, 2026 (Baldermann Decl. (ROA 153) ¶ 3), Plaintiffs didn’t even attempt to meet and confer until nearly the close of business on June 11, the day before the filing deadline. (Parker Decl. (included in ROA 159) Ex. A.) This was not an attempt to meet and confer in good faith. Importantly, it appears a good faith meet and confer could have obviated much of the need for this motion, as the reply papers narrow Plaintiffs’ requested relief. Nevertheless, as Plaintiffs correctly point out in reply, CCP § 1987.1 contains no meet and confer requirement even though it is the preferred (if not generally required) practice for all discovery disputes. As a result, Plaintiffs’ failure to meet and confer in good faith is not grounds for denying the motion. III. <u>Merits of Motion</u>
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	Based on the opposition and reply papers, the Court understands that (1) the parties agree the relevant time period for Plaintiffs’ pediatric records is 2019 to the present, and (2) Plaintiffs have withdrawn their motion insofar as it seeks relief for disclosure of their full names to the subpoena recipients. (In any event, Plaintiffs’ names would have to be disclosed to the subpoena recipients to search for responsive records; the recipients can hardly search for pseudonyms.) What remains at issue is the scope of the search. A. <u>Both Plaintiffs: Pediatric Records</u> Four of the subpoenas at issue seek Plaintiffs’ pediatric records from Seaview Pediatrics’ Irvine and Aliso Viejo offices. (TUSD served one subpoena per plaintiff per office.) Each subpoena identically seeks the following: Any and all charts, including ALL handwritten forms, notes, reports, electronic and paper, soapnotes, inpatient and out patient records, patient in-take forms, patient histories/questionnaires, handwritten and electronic, records of appointments, examinations, color photos, laboratory tests, emergency room records, inpatient and outpatient records, histories, diagnosis, physical therapy, doctors notes, exam sheets, narrative reports, pharmacy records. S [sic], memoranda, correspondence, films/images that may be stored digitally/electronically, MRI’s, CT’s, any reports to or from any outside entity, including but not limited to any and all medical billing and itemized statements, bills showing current balance, adjustments made to account, PAYMENTS MADE TO ACCOUNT and BY WHO, writeoffs, compromises, reductions, including all insurance companies, Medi-Cal, Medicare, and amounts written off with regards to: [Plaintiff]. Again, the parties agree that only records from 2019 to the present need be produced, so the Court modifies the scope of the subpoenas accordingly. As to the categories of records to be produced, Plaintiffs contend that by filing suit, they put at issue only the conditions in controversy, not their entire medical histories, and Seaview Pediatrics’ production must be tailored accordingly. They accordingly ask that the subpoenas be limited to “anxiety, depression, sleep difficulty, stress, and related complaints — and
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	any treatment therefor; excluding billing, insurance, and payment records.” (Reply (ROA 163) at p. 2.) Plaintiffs ignore the breadth of injuries alleged in the SAC. As noted above, Plaintiffs claimed “injury in mind <i>and body</i> including, <i>but not limited to</i>” anxiety, depression, sleep difficulty, stress, and related complaints. (SAC ¶ 39 (emphasis added).) The alleged injuries aren’t limited to the conditions Plaintiffs cite in their reply. Unless they are willing to disclaim all other injuries, the subpoenas appear properly drawn to cover mental <i>and physical</i> conditions that include, but <i>are not limited to</i>, anxiety, depression, and the like. Plaintiffs also ignore the breadth of damages alleged in the SAC. They seek past, present and future medical expenses. Billing, insurance, and payment records are clearly relevant to this claimed area of damages. Accordingly, the subpoenas are modified to cover the time period from 2019 to the present. They are otherwise enforceable as drafted. B. <u>H.G.: Orange Coast College Records</u> H.G. attends (or attended) Orange Coast College in Costa Mesa. TUSD’s subpoena to OCC seeks the following: Any and all records, files and correspondence, including scholastic grades and achievements, courses/classes attempted, courses/classes completed, attendance records, disciplinary actions, counseling records, opinions or progress, records relating to extracurricular activities and medical records regarding: [H.G.]. In reply, Plaintiffs ask that the subpoena be modified to provide for “certified academic transcript and enrollment and attendance records; not counseling, medical, or disciplinary records, as to which the District has made no showing of direct relevance.” (Reply at p. 2.) The Court agrees that transcripts, enrollment records, and attendance records should be produced. These are unquestionably relevant to H.G.’s claimed decrease in academic performance.
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	The Court disagrees that counseling and medical records are irrelevant. Again, H.G. claims broad mental and physical injuries. Her counseling and medical records (to the extent any exist with OCC) appear directly relevant to her claimed injuries. However, the Court agrees that disciplinary records do not appear relevant at this time. H.G. does not claim, for example, to have suffered disciplinary consequences downstream of her claimed mental injuries. Absent a showing of relevance, there is no reason why disciplinary records should be produced. Accordingly, the subpoena is modified to exclude disciplinary records. It is otherwise enforceable as drafted. C. <u>H.G.: Woollett Aquatic Center Records</u> H.G. works (or worked) at Woollett Aquatic Center in Irvine. TUSD’s subpoena to the Center seeks the following: All employment records, including but not limited to, payroll records, W2’s and/or W9’s and 1099’s, all records reflecting the individual’s wages and date(s) of employment, the complete personnel file, applications, counseling reports, attendance records, performance evaluations, notes, correspondence, claims of any kind, including but not limited to, Workers Compensation, any accident or injury, work related or not, and insurance information and medical records/files regarding: [H.G.]. In reply, Plaintiffs ask that the subpoena be modified to provide for “wage, payroll, and hours records; not tax records or the complete personnel file.” (Reply at p. 2.) To the extent “tax records” means W-2s, W-9s, or 1099s, the Court disagrees with Plaintiffs. If Plaintiffs are willing to permit production of H.G.’s wage and/or payroll records, the Court sees no reason why production of W-2s, W-9s, or 1099s would be improper. However, H.G.’s social security number should be redacted from any production. The Court also disagrees with Plaintiffs to the extent they believe records relating to claims of accidents or injuries in the Center’s files shouldn’t be produced. Again, H.G. has placed her mental and physical health at issue in broad terms, and TUSD is entitled to discovery bearing on her claimed injuries.
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		The Court agrees, however, that the subpoena is otherwise overbroad as drafted. There appears to be no reason why essentially every document related to H.G.’s employment, from her job application to her complete personnel file, is particularly relevant. Accordingly, the subpoena is modified to provide for the production of wage, payroll, and hours records; forms W-2, W-9, and 1099 (with social security numbers redacted); and records relating to claims of H.G.’s accidents or injuries in the Center’s files. IV. <u>Fees and Costs</u> In reply, Plaintiffs abandon their initial request for fees and costs incurred in bringing this motion. The request is therefore denied.
9	Dang vs. Allegis Group, Inc. 2017-00903358	Defendant’s Motion to Strike Portions of Complaint Continued to 03/19/2027 at 9:00 a.m. per stipulation of the parties.
10	Pelayo vs. Andek Staffing Services, Inc. 2025-01524878	Defendant’s Motion to Compel Arbitration Defendant’s Vensure HR, Inc.’s Joinder Defendant’s Westamerica Communication, Inc.’s Joinder Before the Court are Defendants AnDek Staffing Services, Inc. and AnDek After Venture’s (collectively, “AnDek”) motion to compel arbitration (ROA 32), Defendant Westamerica Communications, Inc.’s joinder in AnDek’s motion (ROA 37), and Defendant Vensure HR, Inc.’s joinder in AnDek’s motion (ROA 42). AnDek’s motion, and the two joinders, are DENIED. <u>GROUND’S FOR RULING</u> I. <u>Standard of Review</u> The moving party bears the burden of proving the existence of an arbitration agreement by the preponderance of the evidence. (<i>Gamboa v. Northeast Community Clinic</i> (2021) 72 Cal.App.5th 158, 164.) But the burden of production shifts in a three-step

	process. (<i>Id.</i>, at p. 165.) “First, the moving party bears the burden of producing ‘prima facie evidence of a written agreement to arbitrate the controversy.’ [Citation.] The moving party ‘can meet its initial burden by attaching to the [motion or] petition a copy of the arbitration agreement purporting to bear the [opposing party’s] signature.’” (<i>Ibid.</i>) “If the moving party meets its initial prima facie burden and the opposing party disputes the agreement, then in the second step, the opposing party bears the burden of producing evidence to challenge the authenticity of the agreement. [Citation.] The opposing party can do this in several ways. For example, the opposing party may testify under oath or declare under penalty of perjury that the party never saw or does not remember seeing the agreement, or that the party never signed or does not remember signing the agreement.” (<i>Ibid.</i>) “If the opposing party meets its burden of producing evidence, then in the third step, the moving party must establish with admissible evidence a valid arbitration agreement between the parties. The burden of proving the agreement by a preponderance of the evidence remains with the moving party.” (<i>Id.</i>, at pp. 165-166.) II. <u>Discussion</u> AnDek meets its step one burden. It contends Plaintiff Norma Pelayo electronically signed a Spanish-language arbitration agreement attached to the declaration of Robert X. Ramos (ROA 30) as Exhibit A. (A certified English translation is attached to the declaration of Priya Patel in support of Vensure’s joinder (ROA 50).) The agreement is purportedly signed by Plaintiff and by Marilyn Zendejas on behalf of AnDek. Plaintiff meets her shifted burden at step two. She testifies she is “certain that [she] did not sign any Arbitration Agreement.” (Pelayo Decl. (ROA 54) ¶ 6. The burden shifts back to AnDek to prove the existence of an agreement by preponderance of the evidence. AnDek fails to meet its shifted burden. It offers the testimony of Robert X. Ramos, its Director of Client Services. Ramos testifies that AnDek uses onboarding software called Avionté for new hires. He further testifies to how Avionté operates, including measures Avionté takes to ensure that the new employee, and not someone else, is filling out onboarding paperwork. He testifies that Plaintiff followed these procedures, meaning the
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	electronic signature on the arbitration agreement is hers. (See generally Ramos Decl.) But as Plaintiff points out in opposition, Ramos fails to lay foundation for his knowledge of how the Avionté system functions. He declares, “The statements made in this declaration are on the basis of my own personal knowledge, and I could and would competently testify thereto if called upon to do,” but he goes no further. (Ramos Decl. ¶ 2.) He doesn’t explain, for example, how and <i>why</i> he knows how the Avionté system functions. He doesn’t even explain the duties of the Director of Client Services. <i>Gamboa</i> is instructive. There, the employer’s human resources director testified the plaintiff signed the arbitration agreement, but she didn’t explain how she <i>knew</i> plaintiff signed it. “Lopez did not provide the requisite preliminary facts to show she had knowledge about what she said in [the declaration]. [Citation.] Lopez’s boilerplate sentence, ‘If called as a witness I could and would competently testify under oath to the above facts which are personally known to me,’ is not sufficient to establish personal knowledge.” (<i>Gamboa, supra</i>, 72 Cal.App.5th at p. 169.) As a result, the employer couldn’t meet its burden of proving the plaintiff signed the agreement. In the cases cited by AnDek, the employer authenticated an electronically signed agreement with testimony from someone who had foundation to explain how the system functioned. For example, in <i>Espejo v. Southern California Permanente Medical Group</i> (2016) 246 Cal.App.4th 1047, the employer offered the testimony of a “systems consultant” whose duties included “maintaining and troubleshooting the online system for SCPMG physician employment contracts.” (<i>Id.</i>, at p. 1051 & fn. 1.) Similarly, in <i>Beckman v. Zuffa LLC</i> (N.D.Cal. 2021) 2021 WL 5445464, the employer’s declarant established “familiarity with Defendants’ systems and outline of the process of electronic signature.” (<i>Id.</i>, at *3.) In reply, AnDek dismisses Plaintiff’s argument: “Just because Plaintiff’s counsel does not like the particular language used in Ramos’ Declaration, its [sic] not a valid reason to, and does not in any way, discount Mr. Ramos’ testimony regarding how ANDEK obtained plaintiffs electronic signature.” (Reply (ROA 66) at p. 2.) But <i>Gamboa</i> holds boilerplate statements like Ramos’s are insufficient to lay foundation. AnDek’s quarrel isn’t with Plaintiff, but with the law as set forth by the Court of Appeal. Without an explanation of the basis for Ramos’ claimed personal knowledge of how the Avionté system functions, his testimony lacks foundation.
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		The Court recognizes that AnDek might wish to offer a supplemental declaration filling this gap. The Court will not permit such a filing. The problem with Ramos’s testimony was specifically identified in Plaintiff’s opposition. Rather than filing a supplemental declaration with the reply papers, AnDek simply dismissed Plaintiff’s argument out of hand. Along the same lines, AnDek apologizes in its Reply for mistakenly failing to attach an English translation of the arbitration agreement. This apology is in response to Plaintiff raising this issue in her Opposition to the motion. But AnDek does not address perhaps a more significant omission. In his declaration in support of the motion, Ramos cites Exhibit D which supposedly is a copy of “AnDek’s audit report tracking the digital footprint of the electronic consent form.” (Ramos Decl. ¶ 10) Even though Plaintiff notes in her Opposition that there is no Exhibit D attached to the declaration, Defendant ignores this omission, arguing instead that “exhibits A, B and C provide incontrovertible evidence that the ‘signature was the employee’s act.’” While this audit report likely would not have solved the foundation issue discussed above, Defendant’s failure to supply the report is further reason why the Court does not intend to allow further briefing. For these reasons, AnDek has failed to prove by a preponderance of the evidence that an agreement to arbitrate exists. In a footnote, AnDek offers an alternative argument: because Plaintiff continued to work after being informed that an arbitration agreement was a term of employment, she impliedly accepted the agreement. AnDek has forfeited this argument by relegating it to a footnote. (See <i>Golden Door Properties, LLC v. County of San Diego</i> (2020) 50 Cal.App.5th 467, 554-555 (“by relegating an issue to argument in a footnote . . . [t]he County has forfeited this argument”).) But more to the point, even if the argument weren’t forfeited, it fails for much the same reasons discussed above. An employee’s acceptance of an arbitration agreement may be “implied in fact where . . . the employee’s continued employment constitutes her acceptance of an agreement proposed by her employer.” (<i>Craig v. Brown & Root, Inc.</i> (2000) 84 Cal.App.4th 416, 420.) This requires the employer to show the employee received the proposed agreement. (See <i>id.</i> at p. 422 (substantial evidence showed employee received arbitration agreement and continued to work).) Here, the only evidence Plaintiff received the arbitration agreement is Ramos’s testimony that it was delivered to her through Avionté. Again, Ramos has not laid foundation to testify
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		that he knows how Avionté functions. AnDek’s motion to compel arbitration is denied. Because Westamerica’s and Vensure’s joinders depend on AnDek proving the existence of an agreement to arbitrate, the joinders are denied as well.
11	Able Services Wage and Hour Cases JCCP 5231	Motion for Attorney Fees Plaintiff’s Motion for Final Approval Plaintiff’s Motion for Final Approval Plaintiff’s Motion to Seal <u>MOTION FOR FINAL APPROVAL OF CLASS ACTION SETTLEMENT</u> The motion for final approval of class action settlement is GRANTED. The Court awards the following distributions: 1. Attorney’s fees in the amount of \$2,083,333, or 1/3 of the GSA. The Court finds this amount to be a reasonable result in light of the quality of the result obtained, the work performed by class counsel, a review of the billing records provided, and the estimated lodestar. In particular, the Court notes that the Pyle and Feinberg firms have worked on a contingency in this matter since 2015. The Court further notes these firms’ successful work on appeal, which resulted in a published decision regarding PAGA’s administrative exhaustion requirements. In approving this amount and examining the billing records provided, the Court is not approving any particular hourly billing rates proposed by class counsel. 2. Litigation costs in the amount of \$250,505, the full amount sought. 3. Administration costs in the amount of \$98,479, per the administrator’s declaration. 4. Enhancement payments of \$20,000 to Garibay and \$10,000 apiece to Tellez and Uribe. In making these awards, the Court has considered only the factors set forth in <i>Golba v. Dick’s Sporting Goods, Inc.</i> (2015) 238 Cal.App.4th 1251 and <i>Clark v. Am. Residential Servs. LLC</i> (2009) 175 Cal.App.4th 785.

		5. Payment to the LWDA of \$375,000 per the parties' PAGA allocation. Pursuant to section 384(b) of the Code of Civil Procedure, Plaintiffs shall submit to the Court a final report on or before March 30, 2027 setting forth the actual amounts paid to class members and other amounts disbursed pursuant to the settlement. Upon receiving the report, the Court will determine whether further reports and/or a hearing will be necessary. Please submit a revised proposed order for the Court's signature that conforms to the foregoing. <u>MOTION TO SEAL</u> Plaintiffs' motion to seal Exhibit 1 to the declaration of Hunter Pyle and Exhibit B to the declaration of Genevieve Casey is DENIED. The Clerk is directed to publicly file the unredacted versions of these documents that have been lodged with the Court. <u>GROUND'S FOR RULING</u> A court may order a record to be filed under seal only if it expressly finds facts establishing: 1. There exists an overriding interest that overcomes the right of public access to the record; 2. The overriding interest supports sealing the record; 3. A substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; 4. The proposed sealing is narrowly tailored; and 5. No less restrictive means exist to achieve the overriding interest. (Cal. Rules of Court, rule 2.550(d).)
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		Plaintiffs move to seal the unredacted versions of their counsel’s billing records. The publicly filed versions redact every single description of work performed across more than 220 pages of records. Plaintiffs argue that making the unredacted records public would expose their “litigation playbook” to competing firms and to defense counsel. But in the Court’s experience, plaintiffs’ counsel in class action matters routinely file unredacted billing records in support of fee requests. From time to time, counsel may redact specific entries that implicate the attorney-client privilege or the work product privilege, but these are the exception. Indeed, the proposed redactions here include numerous innocuous, non-descriptive entries such as “Discuss case development during team meetings,” “Team Zoom,” and “Cite-checked reply brief.” It hardly reveals a firm’s “litigation playbook” to disclose that there are internal team meetings or that attorneys cite-check briefs. If counsel had redacted selected entries for specific reasons, the Court would have considered a sealing request. But a blanket request to redact every single description of work performed, particularly when there appears to be nothing sensitive about nearly all descriptions, is too much.
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